

**CITY OF HUNTINGTON BEACH
TENANT BASED RENTAL ASSISTANCE PROGRAM**

**PROGRAM GUIDELINES/OPERATING PROCEDURES
(July 2020)**

I. INTRODUCTION

Utilizing HOME Investment Partnership Program (HOME) funding, the City of Huntington Beach (City) has elected to assist certain eligible low income persons and families through funding by the Housing and Urban Development Department (HUD) by establishing a Tenant Based Rental Assistance Program (TBRA) that follows all of the requirements set forth in the HOME Program under Section 24, Part 92, of the Code of Federal Regulations (24 CFR 92). By partnering with local Service Providers, the Program will enable the City to meet the needs of participating tenant households by providing monthly rental assistance for up to 24 months (subject to funding availability.)

II. TENANT SELECTION POLICY

A. Current Residents of the City of Huntington Beach and Persons with Strong Ties to the City

This program is designed to help current residents of the City and those with strong ties to the City. Priority shall be given to residents from the Huntington Beach Police Department, Huntington Beach Homeless Task Force, OC211 and other housing providers. Due to the nature of the population served by the Program, it may not be possible to obtain traditional proof of residency documentation such as utility bills. The following documentation can be accepted to establish that an applicant household qualifies for the Huntington Beach live/work preference:

- Documentation from a Huntington Beach school that the children in the household have been enrolled in and attending the school for at least the last 90 days from the time of admission into the Program.
- Documentation from a partner agency, such as the Huntington Beach Police Department, evidencing that the family is known to be homeless in Huntington Beach.
- Proof that the applicant's last place of stable residency was in the City of Huntington Beach. Verification from a landlord is acceptable.
- Proof that an adult member of the household is working or has been recently hired to work in Huntington Beach.

B. Currently Homeless or At-Risk of Homelessness

- At-Risk of Homelessness refers to a household that is at imminent risk of being evicted due to an economic hardship in paying rent or staying current with rent. (Category 2 of HUD Homeless Definition)
- Homelessness refers to a household who meets the HUD Homeless Definition at 24 CFR 91, 582 and 583: Category 1 (literally homeless) and Category 4 (fleeing/attempting to flee violence and living in a place described in Category 1).

C. Intake Process

As part of the intake process, the Service Provider will meet with the prospective Eligible Household to conduct a needs assessment and complete an Initial Qualifications Form (Appendix A). If the Program has reached maximum capacity, the Service Provider shall review the applicant to assess if other services may be offered while the applicant is waiting for a slot to open in the Program. As part of the intake process, the Service Provider shall also request and/or assist the prospective Eligible Household with the completion of the following documents:

- TBRA Application (Appendix B)
- Declaration of Homeless Status or Declaration of At-Risk of Homelessness Status (Appendix C)

D. Income Eligible Households

- To receive supportive services as well as rental assistance under the HOME Program, the Applicant's total household income must be at or below 60% of the Orange County area median income (AMI). However, once the Applicant is part of the Program, the household income can increase up to 80% of the AMI before a notice of termination must be given from the Program.
- Income limits for low-income households are established annually for the HOME Program by HUD for the Orange County income limit area.
- Gross Annual Income shall be determined in accordance with 24 CFR 5.609, with the allowable exclusions from income established at 24 CFR 5.611.
- Gross Annual Income means the gross amount of income from all sources, including assets, for all adult household members that is anticipated to be received prospectively during the 12-month period following the date of application and before any deductions are taken.

- Applicants must verify eligibility for assistance under the Program through the review of income source documents. As outlined in the revised HOME rules published in July 2013, applicants must provide evidence of income for the two (2) most recent months. Acceptable source documents include wage statements, check stubs, entitlement verification from another government agency and bank statements. The definition of income for the purposes of the Program is located at 24 CFR Part 5 (often referred to as the Section 8 definition). In cases where no evidence of income (third-party verification) is available, applicants may self-report their income. In such cases, a written explanation must be provided as to why third-party verification or documentation was unavailable.
- Likely changes in income may be considered when collecting income verification documentation.
- Initial income verifications are valid for six months. If admission to the Program takes longer than 6 months, income verifications must be updated and reevaluated. After initial verification, income recertification shall be conducted every six months.
- Income verifications will be used for two purposes:
 - To determine eligibility for services. A determination of eligibility will be completed as part of the admissions process and thereafter annually.
 - Income information will be used to establish the household's initial contribution toward rent, which shall be set at 30% of the household income. The household's initial contribution will remain unchanged for at least six months.

E. Eligibility Verification

- Applicants will be re-qualified, including examination of source documentation, every six months or at the end of the lease term, whichever occurs earlier.
- If an applicant has fluctuating income, and/or a change of household size or composition and/or fails to participate in all the policies of the program, the applicant may be requested to provide verification(s) more often, as reasonably necessary to confirm continued qualification and eligibility for the Program.
- Applicants will be given written notice stating whether the Eligible Household was determined to be eligible for continued assistance under the Program.

F. Waiting List

Once the Program has reached maximum enrollment, a waiting list of prospective Eligible Households will be maintained. This list will be prioritized as follows:

- Clients who have been assessed for TBRA eligibility, completed intake process, and are ready for housing placement. Ready for housing placement means that the household has found a housing unit that meets TBRA requirements.
- Clients who have been assessed for TBRA eligibility, completed intake process, and are searching for housing.
- Clients who have been assessed for TBRA eligibility and pending intake.
- Priority ranking will be given for Homeless Category 1 (24 CRF 91, 582 and 583), literally homeless participants from the streets or other locations not meant for human habitation, emergency shelters, or safe havens.

G. Outreach and Collaboration with the City

If funds are available to assist more City residents, the Service Provider is responsible for marketing and outreach activities to find prospective Eligible Households interested in the Program. Examples of outreach activities include conducting community presentations, contacting school districts, community based organizations and faith-based groups, and participating in community events to educate on TBRA resources available.

III. SELECTION OF HOUSING UNITS

A. Housing Unit Selection

Eligible Households may elect to rent any Housing Unit in the City so long as the unit meets federal Housing Quality Standards (HQS) (Appendix D) or such other standards as may be made applicable to the Program by HOME Program statutes and/or regulations, specifically including Uniform Physical Condition Standards (UPCS) and passes a rent reasonableness test. If an appropriate Housing Unit cannot be located within the City boundaries, a Housing Unit can be located outside of the City boundaries.

B. Occupancy Standards

The number of persons in each Eligible Household will determine the required unit type. Each household must comply with the two per bedroom plus one occupancy standard. The following table provides the occupancy standards by unit type:

Unit Type	Number in Household
One-bedroom Unit	Up to 3 Persons
Two-bedroom Unit	Up to 5 Persons
Three-bedroom Unit	Up to 7 Persons
Four-bedroom Unit	Up to 9 Persons

C. Property Inspections

Prior to occupancy of any Housing Unit by an Eligible Household, and again during the annual verification process, a certified HQS inspector must inspect each Housing Unit to ensure the unit complies with HQS as set forth in the HOME Program (24 CFR 92.251), as well as all applicable state and local codes and ordinances, including zoning ordinances. Each HQS inspection will include the following:

- Verification of the age of the Housing Unit (on Rent Reasonableness Form) Appendix E;
- Completed HQS Inspection Form (HUD-52580);
- Lead-based paint hazard assessment, dissemination of lead-based paint information pamphlet and disclosure form and lead-based paint reduction activities, if required;
- Adequate opportunity for landlord to correct any deficiencies indicated in the HQS Inspection form to bring the Housing Unit into compliance; and
- Verification that occupancy by the Eligible Household will comply with occupancy standards.

D. Housing Unit Rent Reasonableness

Rental assistance paid on behalf of the Eligible Household must be in compliance with federal Rent Reasonableness requirements that mandate rents paid by or on behalf of assisted households be similar to rents paid by non-assisted households. Rent Reasonableness reviews will be performed by the service providers. The factors listed below shall be considered when determining rent comparability:

- Location and age;
- Unit size including the number of rooms and square footage or rooms;
- The type of unit including construction type (e.g., single family, duplexes, garden, low-rise, high-rise);
- The quality of the unit, which includes the building construction, maintenance and improvements; and

- Amenities, services and utilities included in the rent.

The Service Provider will follow both the rent reasonableness regulations established for the Housing Choice Voucher (HCV) program at 24 CFR 982.507 to evaluate rents. In the event that a rent request does not meet rent reasonableness requirements, the Service Provider shall attempt to negotiate a lower rent with the property owner. If the owner is not willing to accept a lower rent, the household must be instructed to search for another unit. Under no circumstances shall rent exceed the sum approved through the rent reasonableness review. Additionally, the assisted household is not allowed to make up any difference in the rent offer.

E. Coordination with Landlords

The Service Provider will meet with and provide guidance to landlords participating in the Program regarding the requirements and procedures that impact landlords.

Landlord Agreement (Appendix F)

- The Service Provider will enter into a Landlord Agreement with each participating landlord or property owner. The Landlord Agreement will establish the security deposit assistance payment and the initial rental assistance payments to be paid on behalf of the household. The Agreement will also establish the participating household's initial share of the contract rent. The Agreement will also require the landlord to provide the Service Provider with notice of a lease termination, and reaffirm the tenant protections included in the Tenant Protection Agreement.
- This contract will have an initial term of 6 months unless otherwise agreed between the Service Provider, tenant and the City.

Lease Addendum for Tenant Protection (Appendix G)

- The landlord will be required to enter into a lease agreement with a term of 12 months with any Eligible Household occupying a Housing Unit.
- The lease agreement will include a Tenant Protection Agreement that will be executed in connection with the lease between the landlord and the Eligible Household.
- The Tenant Protection Agreement will include the following elements:
 - Prohibit the inclusion of the following provisions in the lease, as required by 24 CFR 92.253:
 - (1) *Agreement to be sued*;
 - (2) *Treatment of property*;

- (3) *Excusing owner from responsibility;*
 - (4) *Waiver of notice;*
 - (5) *Waiver of legal proceedings;*
 - (6) *Waiver of a jury trial;*
 - (7) *Waiver of right to appeal court decision;*
 - (8) *Tenant chargeable with cost of legal actions regardless of outcome;*
and
 - (9) *Mandatory supportive services.*
- Confirm the landlord's obligation to maintain the Housing Unit in accordance with HQS, as established at 24 CFR 982.401.
 - Prohibit discrimination by the landlord against the Eligible Household.
- The Service Provider will review the lease agreement to confirm its compliance with state law and all HOME Program requirements.

Prior to signing the lease, the Service Provider must provide the City with the tenant's application, income eligibility documentation, IDIS form and lease terms for approval of acceptance into the program. If the City does not respond within two business days, the tenant is deemed approved.

IV. Payment Standards, Rent Calculation, Term and Subsidy Reductions

As authorized by HOME TBRA regulations, the Program will rely on a traditional rental assistance calculation. The model allows for the rent subsidy determination based on 30% of household income.

A. Rent Assistance Calculation

A rental assistance calculation will be completed for each Eligible Household. The calculation will determine each household's Program subsidy and share of the rent. The maximum amount of monthly assistance is the difference between the rent standard for the unit size and 30% of the household's monthly adjusted income. Each household's maximum rent subsidy will vary since the calculation involves the use of individualized factors such as the household's actual income and family size.

The initial household contribution to rent will remain unchanged for at least six months.

Minimum tenant contribution to rent under the Program is set at \$50.00. This minimum is used if the maximum subsidy calculation would result in the household paying less than \$50.00 towards the monthly rent (e.g. if 30% of the household's monthly adjusted income is less than \$50.00). This minimum contribution may be waived in exceptional circumstances.

B. Rent Payment Rent Reasonableness

The Program must use the Rent Reasonableness Standard (Appendix E) to calculate monthly rental assistance. The payment standards represent the cost of rent and utilities for moderately priced units in Huntington Beach as well as those in surrounding Orange County cities. Payment standards are established by bedroom size.

When utilities are included in the cost of renting a unit, that is, the owner assumes responsibility for payment for all utility services, the household's entire share of the housing costs will go directly to the owner. When the cost of utilities is not part of the rent, that is, the household is directly responsible for payment of utility services, the household's initial share will be determined by subtracting a utility allowance from 30% of the household's income. The Orange County Housing Authority utility allowance schedule (Appendix H) shall determine the household's utility allowance. In these cases, the household's share of the rent is equal to 30% of the household's monthly adjusted income minus the applicable monthly utility allowance. Each household is responsible for paying their rent share directly to the landlord each month.

If a selected Housing Unit is subject to contractual, statutory and/or regulatory affordability restriction, the monthly rental assistance payments will not exceed the difference between the required affordable rent amount for the Housing Unit and 30% of the Eligible Household's monthly adjusted income.

i. Participant Agreement (Appendix H)

The Service Provider will enter into a Participant Agreement with each participating client household. The Participant Agreement will establish the Eligible Household's responsibilities towards rent payments. The Agreement will establish the participating household's initial share of the contract rent, which will be adjusted every 6 months.

ii. Term

Rental assistance will be for an initial term of 6 months, which can be extended every 6-12 months, for a cumulative term of up to 24 months. Extensions will be granted at the discretion of the Service Provider and shall be based on continued Program compliance and ongoing need.

The Service Provider will utilize the Gap Analysis and Income Re-Evaluation to assess ongoing need and adjust household's share of rent as appropriate. Households with income above 80% AMI will be notified about income eligibility limits.

iii. Subsidy Reductions

The participant's household income will be reevaluated every six months. If the household income has changed since the previous evaluation, the participant's monthly rent responsibility will be adjusted accordingly.

V. Security Deposits

Security deposit assistance is available to Eligible Households. Such assistance shall be the lesser of:

- Two months approved rent for the Housing Unit; or
- The standard security deposit required by the landlord for non-subsidized tenants.

Security deposit assistance provided to participating households will be in the form of a grant. As such, the landlord can provide a security deposit refund directly to the household. Any disputes involving the return, or lack thereof, of a security deposit shall be settled by the tenant and landlord, as provided for in the lease.

VI. Utility Deposits

Utility deposit assistance is available to Eligible Households.

Utility deposit assistance provided to participating households will be in the form of a grant. As such, the utility provider can provide a utility deposit refund directly to the household. Any disputes involving the return, or lack thereof, of a utility deposit shall be settled by the tenant and the utility provider. The Utility deposit subsidies cannot be used as a stand-alone activity. The assistance must be utilized with rental subsidy, security deposit subsidy, or both.

The Orange County Housing Authority will annually establish the utility allowances for each year. (Appendix H)

VII. Annual Recertification, Termination of Assistance and Returning Households

A. Annual Recertification

Recertification of income and Program eligibility will occur annually. The Service Provider will gather source documentation for participating households to determine

annual income. Annual income must be calculated in accordance with 24 CFR Part 5. If the total household income is above 80% AMI, rental assistance must be terminated following a 30 day notification period.

B. Termination of Rental Assistance

Assistance can be terminated for the following reasons:

- Eviction from the assisted rental unit based on behavioral issues and/or unlawful activity.
- The family will be assisted by another rental assistance program such as the Section 8 Tenant-Based or Project-Based program. Participation in any other rental assistance program is considered a duplicative subsidy therefore all HOME funded rental assistance must terminate.

C. Returning Participant Households

As needed, participants may be allowed to return to the Program for either support services, rental assistance or both. A determination to allow re-entry shall be based on the following criteria:

- Participants must have left the Program in good standing. To be in good standing, participants must have been engaged in their case management plan, voluntarily left the program (not in-lieu of termination) or have been released because their household income exceeded eligible limits. In general, participants will not be allowed to re-enter the Program if they were terminated for non-compliance.
- A request for readmission from a non-compliant household may be considered when compelling reasons exist. In such cases, re-admission will require concurrence from the City.
- The Participant's previous rental assistance did not exceed 24 months. Cumulatively, participants will only be allowed to receive rental assistance for a maximum of 24 months.

VIII. Case Management

The Service Provider should provide comprehensive case management services. The service model should maximize client success by developing individualized service plans and addressing clients' specific needs in securing permanent housing and self-sufficiency. Clients will meet with their Case Manager periodically to update goals, monitor progress, and ensure long-term housing stability.

The Service Provider may make all the following services available to their clients: individual housing and service plan, housing search and placement, financial

management, employment assistance, transportation services and behavioral health services.

IX. RIGHT TO AN INFORMAL HEARING PROCEDURE

Participating Tenant Households have the right to be heard by an impartial official, without prejudice. Program participants may appeal a proposed Program action that may have an adverse effect upon them by submitting a written Request for Hearing to the City of Huntington Beach, which include the Participating Tenant Household's objection, name and relationship of all potential parties, list of documents to be presented, current address and telephone number. Appeals must be filed within seven (7) calendar days of notification of proposed Program action.

The informal hearing will be scheduled as soon as possible. The informal hearing shall be conducted in English. Notice of Informal Hearing will be issued at least ten days prior to the Hearing appointment. The Participating Tenant Household may bring person(s) to testify and/or documents at their expense. Participating Tenant Households may review pertinent file documentation so long as such documentation does not infringe on any other party's rights.

X. CITY REQUIREMENTS

A. Monthly Meetings and Reports

Each month, the City will meet with each Service Provider via teleconference. At least 24 hours prior to the meeting, the Service Provider will provide an updated tenant chart. The City and Service Provider will discuss all tenants, potential applicants and other issues impacting the operations of the Program.

B. Quarterly Summaries

At the end of each quarter, the Service Provider will submit a summary of services provided. The summary shall include the number of new, continuing and existing households served in the quarter, any staffing changes, any billing issues, any outreach efforts and other issues impacting the administration of the Program., The Quarterly Summary is due within 45 days after the end of the quarter.

C. Billing Requirements

Service Providers shall submit their invoices no later than 60 days after the end of a service month. The invoices shall include a City coversheet for each household, a general ledger of all current clients, an updated IDIS form, if necessary, proof of all reimbursable costs, including rent checks, security deposits and staff time and any written communication with the City discussing exceptions or unusual circumstances regarding a household. Timely submission of invoices is required for City finance and budget purposes.

D. The City maintains the ability to make changes to the Operating Guidelines as City, State and Federal laws, ordinances and policies change. The City shall provide written notice to the Service Provider when a substantive change is made to the guidelines.

IX. CONFORMANCE WITH HOME LAWS, RULES AND REGULATIONS

The Program Guidelines/Operating Procedures must conform to all HOME laws, rules and regulations. To the extent Congress or the federal government makes changes to the laws, rules and regulations, particularly due to an exigent circumstance, the City has the discretion to modify these guidelines/procedures to align with federal laws, rules and regulations.

At the time of the adoption of these Operating Guidelines, HUD has issued waivers and suspensions of HOME regulations due to COVID 19. The changes to the HOME regulations shall be in effect until December 31, 2020 unless otherwise modified by HUD. (Appendix J.)

Appendix A

SAMPLE TBRA APPLICATIONS
APPLICATION FOR RENTAL ASSISTANCE
(Pre-Application Version)

APPLICANT NAME:

Current Address:

City, State, Zip Code:

Home Phone:

Alternate Phone:

HOUSEHOLD COMPOSITION

(List the Head of Household and all other members who will be living in the unit. Give the relationship of each family member to the head.)

Member's Full Name	Relationship	Birthdate	Age	Sex	Social Security No.

Race of Head of Household (Check One) - Optional

(This information is being collected to assure compliance with fair housing and equal opportunity rules.)

☐ White

☐ Black

☐ Asian/Pacific Islander

☐ Native American/Alaskan Native

☐ Hispanic

Preference Information.¹ You may qualify for a preference for housing assistance if any of the following circumstances can be verified for your family. Please check any that apply to you.

☐ Are you currently homeless or living in substandard housing?
If yes, please explain.

☐ Have you been (or are you about to be) displaced from your housing?
If yes, please explain:

What is the total annual income of all household members? (Include wages, salaries and tips; other income such as alimony, child support; and Social Security, AFDC or other benefits)

\$

APPLICATION CERTIFICATION: I/we understand that the above information is being collected to determine if I/we are eligible to receive rental assistance. I/we authorize the [Program Administrator] to verify all information provided on this application.

Head of Household Signature	Date	Spouse Signature	Date
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¹ Note: These are examples only. Insert the appropriate local preferences.

**SAMPLE TBRA APPLICATIONS
APPLICATION FOR RENTAL ASSISTANCE
(Full Application Version)**

APPLICANT NAME:

Current Address:

City, State, Zip Code:

Home Phone:

Alternate Phone:

HOUSEHOLD COMPOSITION

(List the Head of Household and all other members who will be living in the unit. Give the relationship of each family member to the head.)

Member's Full Name	Relationship	Birthdate	Age	Sex	Social Security No.

Race of Head of Household (Check One) - Optional

(This information is being collected to assure compliance with fair housing and equal opportunity rules.)

- ☐ White ☐ Black ☐ Asian/Pacific Islander
☐ Native American/Alaskan Native ☐ Hispanic

Preference Information.² You may qualify for a preference for housing assistance if any of the following circumstances can be verified for your family. Please check any that apply to you.

- ☐ Are you currently homeless or living in substandard housing?
If yes, please explain:

- ☐ Have you been (or are you about to be) displaced from your housing?
If yes, please explain:

² Note: These are examples only. Insert the appropriate local preferences.

INCOME INFORMATION

What is the total annual income of all household members? (Include wages, salaries and tips; other income such as alimony, child support; and Social Security, AFDC or other benefits)

\$

Member's Full Name	Source of Income	Annual Amount	Payment Basis (weekly, monthly, etc.)

ASSET INFORMATION

List the type and source of any family assets. Provide both the current cash value and the estimated annual income from the asset.

Member's Full Name	Type and Source of Asset (e.g.bank accounts, investments)	Cash Value of Asset	Annual Income from Asset

EXPENSE INFORMATION

☐ Yes ☐ No Does your household have un-reimbursed medical expenses in excess of 3 percent of annual income?

☐ Yes ☐ No Does your household pay child care expenses for children under the age of 13 that enable a family member to work or go to school?

☐ Yes ☐ No Does your household pay care expenses for the care of a family member with disabilities that enable a family member to work?

APPLICATION CERTIFICATION: I/we understand that the above information is being collected to determine if I/we are eligible to receive rental assistance. I/we authorize the [Program Administrator] to verify all information provided on this application.

Head of Household Signature	Date	Spouse Signature	Date
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Appendix B

SAMPLE TBRA APPLICATIONS
APPLICATION FOR RENTAL ASSISTANCE
(Pre-Application Version)

APPLICANT NAME:

Current Address:

City, State, Zip Code:

Home Phone:

Alternate Phone:

HOUSEHOLD COMPOSITION

(List the Head of Household and all other members who will be living in the unit. Give the relationship of each family member to the head.)

Member's Full Name	Relationship	Birthdate	Age	Sex	Social Security No.

Race of Head of Household (Check One) - Optional

(This information is being collected to assure compliance with fair housing and equal opportunity rules.)

☐ White

☐ Black

☐ Asian/Pacific Islander

☐ Native American/Alaskan Native

☐ Hispanic

Preference Information.¹ You may qualify for a preference for housing assistance if any of the following circumstances can be verified for your family. Please check any that apply to you.

☐ Are you currently homeless or living in substandard housing?

If yes, please explain:

☐ Have you been (or are you about to be) displaced from your housing?

If yes, please explain:

What is the total annual income of all household members? (Include wages, salaries and tips; other income such as alimony, child support; and Social Security, AFDC or other benefits)

\$

APPLICATION CERTIFICATION: I/we understand that the above information is being collected to determine if I/we are eligible to receive rental assistance. I/we authorize the [Program Administrator] to verify all information provided on this application.

Head of Household Signature	Date	Spouse Signature	Date
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¹ Note: These are examples only. Insert the appropriate local preferences.

**SAMPLE TBRA APPLICATIONS
APPLICATION FOR RENTAL ASSISTANCE
(Full Application Version)**

APPLICANT NAME:

Current Address:

City, State, Zip Code:

Home Phone:

Alternate Phone:

HOUSEHOLD COMPOSITION

(List the Head of Household and all other members who will be living in the unit. Give the relationship of each family member to the head.)

Member's Full Name	Relationship	Birthdate	Age	Sex	Social Security No.

Race of Head of Household (Check One) - Optional

(This information is being collected to assure compliance with fair housing and equal opportunity rules.)

- | | | |
|---|--------------------------------|---|
| ☐ White | ☐ Black | ☐ Asian/Pacific Islander |
| ☐ Native American/Alaskan Native | | ☐ Hispanic |

Preference Information.² You may qualify for a preference for housing assistance if any of the following circumstances can be verified for your family. Please check any that apply to you.

- ☐ Are you currently homeless or living in substandard housing?
If yes, please explain:

- ☐ Have you been (or are you about to be) displaced from your housing?
If yes, please explain:

² Note: These are examples only. Insert the appropriate local preferences.

INCOME INFORMATION

What is the total annual income of all household members? (Include wages, salaries and tips; other income such as alimony, child support; and Social Security, AFDC or other benefits)

\$

Member's Full Name	Source of Income	Annual Amount	Payment Basis (weekly, monthly, etc.)

ASSET INFORMATION

List the type and source of any family assets. Provide both the current cash value and the estimated annual income from the asset.

Member's Full Name	Type and Source of Asset (e.g. bank accounts, investments)	Cash Value of Asset	Annual Income from Asset

EXPENSE INFORMATION

☐ Yes ☐ No Does your household have un-reimbursed medical expenses in excess of 3 percent of annual income?

☐ Yes ☐ No Does your household pay child care expenses for children under the age of 13 that enable a family member to work or go to school?

☐ Yes ☐ No Does your household pay care expenses for the care of a family member with disabilities that enable a family member to work?

APPLICATION CERTIFICATION: I/we understand that the above information is being collected to determine if I/we are eligible to receive rental assistance. I/we authorize the [Program Administrator] to verify all information provided on this application.

Head of Household Signature	Date	Spouse Signature	Date
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Appendix C

DECLARATION OF HOMELESSNESS STATUS

Applicant Name: _____

☐ I certify, under penalty of perjury, that following information is true and complete:

Applicant Signature: _____

Date: _____

*T=Third Party / O=Observation / S=Self-certification

Attach Third Party verification documentation and Intake Observation statements behind this form

	Verification Type T/O/S*/Notes
Situation 1	
☐ An individual or family who lacks a fixed, regular, and adequate nighttime residence, meaning	
Check one of the following	
☐ An individual or family with a primary nighttime residence that is a public or private place not designed for or ordinarily used as a regular sleeping accommodation for human beings, including a car, park, abandoned building, bus or train station, airport, or camping ground. (T-not required for emergency shelter or street outreach)	
☐ An individual or family living in a supervised publicly or privately operated shelter designated to provide temporary living arrangements (including congregate shelters, transitional housing, and hotels and motels paid for by charitable organizations or by federal, state, or local government programs for low-income individuals)	
☐ An individual who is exiting an institution where he or she resided for 90 days or less AND who resided in an emergency shelter or place not meant for human habitation immediately before entering that institution. (O-not allowed)	

	Verification Type T/O/S*/Notes
Situation 2	
☐ An individual or family who will imminently lose their primary nighttime residence, provided that:	
The primary nighttime residence will be lost within 14 days of the date of application for homeless assistance AND	
No subsequent residence has been identified AND	
The individual or family lacks the resources or support networks, e.g., family, friends, faith-based or other social networks, needed to obtain other permanent housing	

	Verification Type T/O/S*/Notes
Situation 3	
☐ Unaccompanied youth under 25 years of age, or families with children and youth, who do not otherwise qualify as homeless under this definition, but who	
qualifies as "homeless" under another federal statute AND (Only T is allowed)	
have not had a lease, ownership interest, or occupancy agreement in permanent housing at any time during the 60 days immediately preceding the date of application for homeless assistance AND (O is not allowed)	
have experienced persistent instability as measured by two moves or more during the 60-day period immediately preceding the date of applying for homeless assistance AND (O is not allowed)	
can be expected to continue in such status for an extended period of time because of chronic disabilities, chronic physical health or mental health conditions, substance addiction, histories of domestic violence or childhood abuse (including neglect), the presence of a child or youth with a disability, OR two or more barriers to employment, which include the lack of a high school degree or General Education Development (GED), illiteracy, low English proficiency, a history of incarceration or detention for criminal activity, and a history of unstable employment; (S is not allowed O is not allowed for barriers to employment)	

	Verification Type T/O/S*/Notes
Safety should never be put at risk in order to obtain documentation under this situation. If the provider is a DV provider self-certification sufficient. For non-DV providers, if there is no threat of safety supporting verification should be provided.	
Situation 4-	
☐ Any individual or family who	
Is fleeing, or is attempting to flee, domestic violence, dating violence, sexual assault, stalking, or other dangerous or life-threatening conditions that relate to violence against the individual or a family member, including a child, that has either taken place within the individual's or family's primary nighttime residence or has made the individual or family afraid to return to their primary nighttime residence AND	
has no other residence AND	
lacks the resources or support networks, e.g., family, friends, faith-based or other social networks, to obtain other permanent housing	

DECLARATION OF HOMELESSNESS STATUS (continued)

Applicant Name: _____

Staff Certification

I understand that third-party verification is the preferred method of certifying homelessness or risk for homelessness for an individual who is applying for assistance. I understand self declaration is only permitted when I have attempted to but cannot obtain third party verification.

Describe in detail efforts made for Third Party verification and attach documentation behind this form (email, phone logs, etc...)

[illegible]

Staff Signature: _____ Date: _____

Appendix D

Inspection Checklist

Housing Choice Voucher Program

U.S. Department of Housing
and Urban Development
Office of Public and Indian Housing

OMB Approval No. 2577-0169
(Exp. 07/31/2022)

Public reporting burden for this collection of information is estimated to average 0.50 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. This agency may not conduct or sponsor, and a person is not required to respond to, a collection of information unless that collection displays a valid OMB control number.

Assurances of confidentiality are not provided under this collection.

This collection of information is authorized under Section 8 of the U.S. Housing Act of 1937 (42 U.S.C. 1437f). The information is used to determine if a unit meets the housing quality standards of the section 8 rental assistance program.

Privacy Act Statement. The Department of Housing and Urban Development (HUD) is authorized to collect the information required on this form by Section 8 of the U.S. Housing Act of 1937 (42 U.S.C. 1437f). Collection of the name and address of both family and the owner is mandatory. The information is used to determine if a unit meets the housing quality standards of the Section 8 rental assistance program. HUD may disclose this information to Federal, State and local agencies when relevant to civil, criminal, or regulatory investigations and prosecutions. It will not be otherwise disclosed or released outside of HUD, except as permitted or required by law. Failure to provide any of the information may result in delay or rejection of family participation.

Name of Family		Tenant ID Number	Date of Request (mm/dd/yyyy)
Inspector		Neighborhood/Census Tract	Date of Inspection (mm/dd/yyyy)
Type of Inspection Initial ☐ Special ☐ Reinspection ☐		Date of Last Inspection (mm/dd/yyyy)	PHA
A. General Information			
Inspected Unit		Year Constructed (yyyy)	Housing Type (check as appropriate) ☐ Single Family Detached ☐ Duplex or Two Family ☐ Row House or Town House ☐ Low Rise: 3, 4 Stories, Including Garden Apartment ☐ High Rise; 5 or More Stories ☐ Manufactured Home ☐ Congregate ☐ Cooperative ☐ Independent Group Residence ☐ Single Room Occupancy ☐ Shared Housing ☐ Other
Full Address (including Street, City, County, State, Zip)			
Number of Children in Family Under 6			
Owner			
Name of Owner or Agent Authorized to Lease Unit Inspected		Phone Number	
Address of Owner or Agent			

B. Summary Decision On Unit (To be completed after form has been filled out)

☐ Pass ☐ Fail ☐ Inconclusive	Number of Bedrooms for Purposes of the FMR or Payment Standard	Number of Sleeping Rooms

Inspection Checklist				Final Approval Date (mm/dd/yyyy)
Item No.	1. Living Room	Yes Pass	No Fail	
1.1	Living Room Present			
1.2	Electricity			
1.3	Electrical Hazards			
1.4	Security			
1.5	Window Condition			
1.6	Ceiling Condition			
1.7	Wall Condition			
1.8	Floor Condition			

* Room Codes: 1 = Bedroom or Any Other Room Used for Sleeping (regardless of type of room); 2 = Dining Room or Dining Area;
3 = Second Living Room, Family Room, Den, Playroom, TV Room; 4 = Entrance Halls, Corridors, Halls, Staircases; 5 = Additional Bathroom; 6 = Other

Item No.	1. Living Room (Continued)	Yes Pas	No Fail	In-Conc.	Comment	Final Approval Date (mm/dd/yyyy)
1.9	Lead-Based Paint Are all painted surfaces free of deteriorated paint? If not, do deteriorated surfaces exceed two square feet per room and/or is more than 10% of a component?				Not Applicable	
2. Kitchen						
2.1	Kitchen Area Present					
2.2	Electricity					
2.3	Electrical Hazards					
2.4	Security					
2.5	Window Condition					
2.6	Ceiling Condition					
2.7	Wall Condition					
2.8	Floor Condition					
2.9	Lead-Based Paint Are all painted surfaces free of deteriorated paint? If not, do deteriorated surfaces exceed two square feet per room and/or is more than 10% of a component?				Not Applicable	
2.10	Stove or Range with Oven					
2.11	Refrigerator					
2.12	Sink					
2.13	Space for Storage, Preparation, and Serving of Food					
3. Bathroom						
3.1	Bathroom Present					
3.2	Electricity					
3.3	Electrical Hazards					
3.4	Security					
3.5	Window Condition					
3.6	Ceiling Condition					
3.7	Wall Condition					
3.8	Floor Condition					
3.9	Lead-Based Paint Are all painted surfaces free of deteriorated paint? If not, do deteriorated surfaces exceed two square feet per room and/or is more than 10% of a component?				Not Applicable	
3.10	Flush Toilet in Enclosed Room in Unit					
3.11	Fixed Wash Basin or Lavatory in Unit					
3.12	Tub or Shower in Unit					
3.13	Ventilation					

Item No. 4. Other Rooms Used For Living and Halls	Yes Pass	No Fail	In- Conc.	Comment	Final Approval Date (mm/dd/yyyy)
4.1 Room Code* and Room Location ☐	(Circle One) Right/Center/Left	(Circle One) Front/Center/Rear	____ Floor Level		
4.2 Electricity/Illumination					
4.3 Electrical Hazards					
4.4 Security					
4.5 Window Condition					
4.6 Ceiling Condition					
4.7 Wall Condition					
4.8 Floor Condition					
4.9 Lead-Based Paint			☐ Not Applicable		
Are all painted surfaces free of deteriorated paint?					
If not, do deteriorated surfaces exceed two square feet per room and/or is more than 10% of a component?					
4.10 Smoke Detectors					
4.1 Room Code* and Room Location ☐	(Circle One) Right/Center/Left	(Circle One) Front/Center/Rear	____ Floor Level		
4.2 Electricity/Illumination					
4.3 Electrical Hazards					
4.4 Security					
4.5 Window Condition					
4.6 Ceiling Condition					
4.7 Wall Condition					
4.8 Floor Condition					
4.9 Lead-Based Paint			☐ Not Applicable		
Are all painted surfaces free of deteriorated paint?					
If not, do deteriorated surfaces exceed two square feet per room and/or is more than 10% of a component?					
4.10 Smoke Detectors					
4.1 Room Code* and Room Location ☐	(Circle One) Right/Center/Left	(Circle One) Front/Center/Rear	____ Floor Level		
4.2 Electricity/Illumination					
4.3 Electrical Hazards					
4.4 Security					
4.5 Window Condition					
4.6 Ceiling Condition					
4.7 Wall Condition					
4.8 Floor Condition					
4.9 Lead-Based Paint			☐ Not Applicable		
Are all painted surfaces free of deteriorated paint?					
If not, do deteriorated surfaces exceed two square feet per room and/or is more than 10% of a component?					

Item No.	4. Other Rooms Used For Living and Halls	Yes Pass	No Fail	In-Conc.	Comment	Final Approval Date (mm/dd/yyyy)
4.1	Room Code * and Room Location				(Circle One) Right/Center/Left (Circle One) Front/Center/Rear Floor Level	
4.2	Electricity/Illumination					
4.3	Electrical Hazards					
4.4	Security					
4.5	Window Condition					
4.6	Ceiling Condition					
4.7	Wall Condition					
4.8	Floor Condition					
4.9	Lead-Based Paint				Not Applicable	
	Are all painted surfaces free of deteriorated paint?					
	If not, do deteriorated surfaces exceed two square feet per room and/or is more than 10% of a component?					
4.10	Smoke Detectors					
4.1	Room Code* and Room Location				(Circle One) Right/Center/Left (Circle One) Front/Center/Rear Floor Level	
4.2	Electricity/Illumination					
4.3	Electrical Hazards					
4.4	Security					
4.5	Window Condition					
4.6	Ceiling Condition					
4.7	Wall Condition					
4.8	Floor Condition					
4.9	Lead-Based Paint				Not Applicable	
	Are all painted surfaces free of deteriorated paint?					
	If not, do deteriorated surfaces exceed two square feet per room and/or is more than 10% of a component?					
4.10	Smoke Detectors					
5. All Secondary Rooms (Rooms not used for living)						
5.1	None Go to Part 6					
5.2	Security					
5.3	Electrical Hazards					
5.4	Other Potentially Hazardous Features in these Rooms					

Item No.	6. Building Exterior	Yes Pass	No Fail	In - Conc.	Comment	Final Approval Date (mm/dd/yyyy)
6.1	Condition of Foundation					
6.2	Condition of Stairs, Rails, and Porches					
6.3	Condition of Roof/Gutters					
6.4	Condition of Exterior Surfaces					
6.5	Condition of Chimney					
6.6	Lead Paint: Exterior Surfaces				Not Applicable	
	Are all painted surfaces free of deteriorated paint?					
	If not, do deteriorated surfaces exceed 20 square feet of total exterior surface area?					
6.7	Manufactured Home: Tie Downs					
7. Heating and Plumbing						
7.1	Adequacy of Heating Equipment					
7.2	Safety of Heating Equipment					
7.3	Ventilation/Cooling					
7.4	Water Heater					
7.5	Approvable Water Supply					
7.6	Plumbing					
7.7	Sewer Connection					
8. General Health and Safety						
8.1	Access to Unit					
8.2	Fire Exits					
8.3	Evidence of Infestation					
8.4	Garbage and Debris					
8.5	Refuse Disposal					
8.6	Interior Stairs and Common Halls					
8.7	Other Interior Hazards					
8.8	Elevators					
8.9	Interior Air Quality					
8.10	Site and Neighborhood Conditions					
8.11	Lead-Based Paint: Owner's Certification				Not Applicable	

If the owner is required to correct any lead-based paint hazards at the property including deteriorated paint or other hazards identified by a visual assessor, a certified lead-based paint risk assessor, or certified lead-based paint inspector, the PHA must obtain certification that the work has been done in accordance with all applicable requirements of 24 CFR Part 35. The Lead -Based Paint Owner Certification must be received by the PHA before the execution of the HAP contract or within the time period stated by the PHA in the owner HQS violation notice. Receipt of the completed and signed Lead-Based Paint Owner Certification signifies that all HQS lead-based paint requirements have been met and no re-inspection by the HQS inspector is required.

C. Special Amenities (Optional)

This Section is for optional use of the HA. It is designed to collect additional information about other positive features of the unit that may be present. Although the features listed below are not included in the Housing Quality Standards, the tenant and HA may wish to take them into consideration in decisions about renting the unit and the reasonableness of the rent. Check/list any positive features found in relation to the unit.

D. Questions to ask the Tenant (Optional)

1. Living Room

- ☐ High quality floors or wall coverings
- ☐ Working fireplace or stove Balcony, patio, deck, porch Special windows or doors
- ☐ Exceptional size relative to needs of family
- ☐ Other: (Specify)

2. Kitchen

- ☐ Dishwasher
- ☐ Separate freezer
- ☐ Garbage disposal
- ☐ Eating counter/breakfast nook
- ☐ Pantry or abundant shelving or cabinets
- ☐ Double oven/self cleaning oven, microwave
- ☐ Double sink
- ☐ High quality cabinets
- ☐ Abundant counter-top space
- ☐ Modern appliance(s)
- ☐ Exceptional size relative to needs of family
- ☐ Other: (Specify)

3. Other Rooms Used for Living

- ☐ High quality floors or wall coverings
- ☐ Working fireplace or stove Balcony, patio, deck, porch Special windows or doors
- ☐ Exceptional size relative to needs of family
- ☐ Other: (Specify)

4. Bath

- ☐ Special feature shower head
- ☐ Built-in heat lamp
- ☐ Large mirrors
- ☐ Glass door on shower/tub
- ☐ Separate dressing room
- ☐ Double sink or special lavatory
- ☐ Exceptional size relative to needs of family
- ☐ Other: (Specify)

5. Overall Characteristics

- ☐ Storm windows and doors
- ☐ Other forms of weatherization (e.g., insulation, weather stripping) Screen doors or windows
- ☐ Good upkeep of grounds (i.e., site cleanliness, landscaping, condition of lawn)
- ☐ Garage or parking facilities
- ☐ Driveway
- ☐ Large yard
- ☐ Good maintenance of building exterior
- ☐ Other: (Specify)

6. Disabled Accessibility

Unit is accessible to a particular disability. ☐ Yes ☐ No
Disability

1. Does the owner make repairs when asked? Yes ☐ No ☐
2. How many people live there?
3. How much money do you pay to the owner/agent for rent? \$ _____
4. Do you pay for anything else? (specify) _____
5. Who owns the range and refrigerator? (insert O = Owner or T = Tenant) Range _____ Refrigerator _____ Microwave ☐
6. Is there anything else you want to tell us? (specify) Yes ☐ No ☐

Provide a summary description of each item which resulted in a rating of "Fail" or "Pass with Comments."

Provide a summary description of each item which resulted in a rating of "Fail" or "Pass with Comments."

Type of Inspection	Initial	Special	Reinspection
--------------------	---------	---------	--------------

Item Number

Reason for "Fail" or "Pass with Comments" Rating

[illegible]

Yes

☐

No



Appendix E

RENT REASONABLENESS CHECKLIST AND CERTIFICATION

	Proposed Unit	Unit #1	Unit #2	Unit #3
Address				
Number of Bedrooms				
Square Feet				
Type of Unit/Construction				
Housing Condition				
Location/Accessibility				
Amenities				
Unit:				
Site:				
Neighborhood:				
Age in Years				
Utilities (type)				
Unit Rent				
Utility Allowance				
Gross Rent				
Handicap Accessible?				

CERTIFICATION:

A. Compliance with Payment Standard

Proposed Contract Rent + Utility Allowance = Proposed Gross Rent

Approved rent does not exceed applicable Payment Standard of

\$ _____.

B. Rent Reasonableness

Based upon a comparison with rents for comparable units, I have determined that the proposed rent for the unit [] is [] is not reasonable.

Name:	Signature:	Date:
-------	------------	-------

Appendix F

HOME RENTAL ASSISTANCE CONTRACT

LANDLORD NAME & ADDRESS Telephone No. _____	UNIT NO. & ADDRESS	TENANT NAME
--	--------------------	-------------

This HOME Rental Assistance Contract ("Contract") is entered into between the "City of Anytown, Department of _____" (program administrator) and the Landlord identified above. This Contract applies only to the Tenant family and the dwelling unit identified above.

1. TERM OF THE CONTRACT

The term of this Contract shall begin on _____¹ and end no later than _____². The Contract automatically terminates on the last day of the term of the Lease.

2. SECURITY DEPOSIT³

- A. The (program administrator) will pay a security deposit to the Landlord in the amount of \$ _____. The Landlord will hold this security deposit during the period the Tenant occupies the dwelling unit under the Lease. The Landlord shall comply with state and local laws regarding interest payments on security deposits.
- B. After the Tenant has moved from the dwelling unit, the Landlord may, subject to state and local law, use the security deposit, including any interest on the deposit, as reimbursement for rent or any other amounts payable by the Tenant under the Lease. The Landlord will give the Tenant a written list of all items charged against the security deposit and the amount of each item. After deducting the amount used as reimbursement to the Landlord, the Landlord shall promptly refund the full amount of the balance to the [Tenant/program administrator].
- C. The Landlord shall immediately notify the (program administrator) when the Tenant has moved from the Contract unit.

3. RENT AND AMOUNTS PAYABLE BY TENANT AND (program administrator)

- A. *Initial Rent.* The initial total monthly rent payable to the Landlord for the first twelve months of this Contract is \$ _____.
- B. *Rent Adjustments.* With no less than _____⁴ days' notice to the Tenant and the (program administrator), the owner may propose a reasonable adjustment to be effective no earlier than the 13th month of this Contract. The proposed rent may be rejected by either the Tenant or the (program administrator). The Tenant may reject the proposed rent by providing the Landlord

¹ Insert the first day of the term of the Lease.

² The maximum allowable length of a HOME Coupon Contract is two years.

³ Modify the paragraph based on PJ policy.

⁴ Insert the number of days notice the owner must provide of a rent increase. At least 60 days is recommended to enable the program administrator 30 days to review the rent and still enable the landlord to give the tenant 30 days notice.

HOME Rental Assistance Contract (Page Two)

with 30 days' written notice of intent to vacate. If the program administrator rejects the proposed rent, the program administrator must give both the Tenant and the Landlord 30 days' notice of intent to terminate the Contract.

- C. *Tenant Share of the Rent.* Initially, and until such time as both the Landlord and the Tenant are notified by the (program administrator), the Tenant's share of the rent shall be \$_____.
- D. *Program Administrator Share of the Rent.* Initially, and until such time as both the Landlord and Tenant are notified by the (program administrator), the (program administrator's) share of the rent shall be \$_____. Neither the (program administrator) nor HUD assumes any obligation for the Tenant's rent, or for payment of any claim by the Owner against the Tenant. The (program administrator's) obligation is limited to making rental payments on behalf of the Tenant in accordance with this Contract.
- E. *Payment Conditions.* The right of the owner to receive payments under this Contract shall be subject to compliance with all of the provisions of the Contract. The Landlord shall be paid under this Contract on or about the first day of the month for which the payment is due. The Landlord agrees that the endorsement on the check shall be conclusive evidence that the Landlord received the full amount due for the month, and shall be a certification that:
1. the Contract unit is in decent, safe and sanitary condition, and that the Landlord is providing the services, maintenance and utilities agreed to in the Lease.
 2. the Contract unit is leased to and occupied by the Tenant named above in this Contract.
 3. the Landlord has not received and will not receive any payments as rent for the Contract unit other than those identified in this Contract.
 4. to the best of the Landlord's knowledge, the unit is used solely as the Tenant's principal place of residence.
- F. *Overpayments.* If the (program administrator) determines that the Landlord is not entitled to any payments received, in addition to other remedies, the (program administrator) may deduct the amount of the overpayment from any amounts due the Landlord, including the amounts due under any other Rental Assistance Coupon Contract.

4. HOUSING QUALITY STANDARDS AND LANDLORD-PROVIDED SERVICES

- A. The Landlord agrees to maintain and operate the Contract unit and related facilities to provide decent, safe and sanitary housing in accordance with 24 CFR Section 882.109, including all of the services, maintenance and utilities agreed to in the Lease.
- B. The (program administrator) shall have the right to inspect the Contract unit and related facilities at least annually, and at such other times as may be necessary to assure that the unit is in decent, safe, and sanitary condition, and that required maintenance, services and utilities are provided.
- C. If the (program administrator) determines that the Landlord is not meeting these obligations, the program administrator shall have the right, even if the Tenant continues in occupancy, to terminate payment of the (program administrator's) share of the rent and/or terminate the Contract.

5. TERMINATION OF TENANCY

The Landlord may evict the Tenant following applicable state and local laws. The Landlord must give the Tenant at least 30 days' written notice of the termination and notify the (program administrator) in writing when eviction proceedings are begun. This may be done by providing the (program administrator) with a copy of the required notice to the tenant.

6. FAIR HOUSING REQUIREMENTS

- A. *Nondiscrimination.* The Landlord shall not, in the provision of services or in any other manner, discriminate against any person on the grounds of age, race, color, creed, religion, sex, handicap, national origin, or familial status. The obligation of the Landlord to comply with Fair Housing Requirements insures to the benefit of the United States of America, the Department of Housing and Urban Development, and the (program administrator), any of which shall be entitled to involve any of the remedies available by law to redress any breach or to compel compliance by the Landlord.
- B. *Cooperation in Quality Opportunity Compliance Reviews.* The Landlord shall comply with the (program administrator) and with HUD in conducting compliance reviews and complaint investigations pursuant to all applicable civil rights statutes, Executive Orders and all related rules and regulations.

7. (Program administrator) AND HUD ACCESS TO LANDLORD RECORDS

- A. The Landlord shall provide any information pertinent to this Contract which the (program administrator) or HUD may reasonably require.
- B. The Landlord shall permit the (program administrator) of HUD, or any of their authorized representatives, to have access to the premises and, for the purposes of audit and examination, to have access to any books, documents, papers, and records of the Landlord to the extent necessary to determine compliance with this Contract.

8. RIGHTS OF (Program administrator) IF LANDLORD BREACHES THE CONTRACT

- A. Any of the following shall constitute a breach of the Contract:
 - (1) If the Landlord has violated any obligation under this Contract; or
 - (2) If the Landlord has demonstrated any intention to violate any obligation under this Contract; or
 - (3) If the Landlord has committed any fraud or made any false statement in connection with the Contract, or has committed fraud or made any false statement in connection with any Federal housing assistance program.
- B. The PHA's right and remedies under the Contract include recovery of overpayments, termination or reduction of payments, and termination of the Contract. If the (program administrator) determines that a breach has occurred, the program administrator may exercise any of its rights or remedies under the Contract. The (program administrator) shall notify the Landlord in writing of such determination, including a brief statement of the reasons for the determination. The notice by the PHA to the landlord may require the Landlord to take corrective action by a time prescribed in the notice.
- C. Any remedies employed by the (program administrator) in accordance with this Contract shall be effective as provided in a written notice by the (program administrator) to the Landlord. The (program administrator's) exercise or non-exercise of any remedy shall not constitute a waiver of the right to exercise that or any other right or remedy at any time.

9. PHA RELATION TO THIRD PARTIES

- A. The (program administrator) does not assume any responsibility for, or liability to, any person injured as a result of the Landlord's action or failure to act in connection with the implementation of this Contract, or as a result of any other action or failure to act by the Landlord.
- B. The Landlord is not the agent of the (program administrator) and this Contract does not create or affect any relationship between the (program administrator) and any lender to the Landlord, or any suppliers, employees, contractors or subcontractors used by the Landlord in connection with this Contract.
- C. Nothing in this Contract shall be construed as creating any right of the Tenant or a third party (other than HUD) to enforce any provision of this Contract or to assert any claim against HUD, the (program administrator) or the Landlord under this Contract.

10. CONFLICT OF INTEREST PROVISIONS

- A. No employee of the (program administrator) who formulates policy or influences decisions with respect to the Rental Assistance Program, and no public official or member of a governing body or state or local legislator who exercise his functions or responsibilities with respect to the program shall have any direct or indirect interest during this person's tenure, or for one year thereafter, in this contract or in any proceeds or benefits arising from the Contract or to any benefits which may arise from it.

11. TRANSFER OF THE CONTRACT

The Landlord shall not transfer in any form this Contract without the prior written consent of the (program administrator). The (program administrator) shall give its consent to a transfer if the transferee agrees in writing (in a form acceptable to the (program administrator)) to comply with all terms and conditions of this Contract.

12. ENTIRE AGREEMENT: INTERPRETATION

- A. This Contract contains the entire agreement between the Landlord and the program administrator. No changes in this Contract shall be made except in writing signed by both the Landlord and the (program administrator).
- B. The Contract shall be interpreted and implemented in accordance with HUD requirements.

HOME Rental Assistance Contract (Page Five)

13. WARRANTY OF LEGAL CAPACITY AND CONDITION OF UNIT

- A. The Landlord warrants the unit is in decent, safe, and sanitary condition as defined in 24 CFR Section 882.109, and that the Landlord has the legal right to lease the dwelling unit covered by this Contract during the Contract term.
- B. The party, if any, executing this Contract on behalf of the Landlord hereby warrants that authorization has been given by the Landlord to execute it on behalf of the Landlord.

Landlord Name (Type or Print):	(Program administrator) Representative (Type of Print):
(Signature/Date)	(Signature/Date)

WARNING: 18 U.S.C. 1001 provides, among other things, that whoever knowingly and willingly makes or uses a document or writing containing any false, fictitious, or fraudulent statements or entries, in any matter within the jurisdiction of any department or agency of the United States, shall be fined not more than \$10,000, or imprisoned for not more than five years, or both.

LANDLORD'S CHECK TO BE MAILED TO: SS NO _____

NAME(S) _____

ADDRESS _____

SIGNATURE OF OWNER DATE

SIGNATURE OF OWNER DATE

Appendix G

LEASE ADDENDUM

TENANT	LANDLORD	UNIT NO. & ADDRESS

This lease addendum adds the following paragraphs to the Lease between the Tenant and Landlord referred to above.

- A. Purpose of the Addendum.** The lease for the above-referenced unit is being amended to include the provisions of this addendum because the Tenant has been approved to receive rental assistance under the [program administrator's] HOME Rental Assistance Program. Under the Rental Assistance Program, the [program administrator] will make monthly payments to the Landlord on behalf of the Tenant.

The Lease has been signed by the parties on the condition that the [program administrator] and Landlord will promptly execute a HOME Rental Assistance Contract. This Lease shall not become effective unless the Contract has been executed by both the Landlord and the [program administrator], effective the first day of the term of the Lease.

- B. Conflict with Other Provisions of the Lease.** In case of any conflict between the provisions of this Addendum and other sections of the Lease, the provisions of this Addendum shall prevail.

- C. Terms of the Lease.** The term shall begin on _____ and shall continue until: (1) the Lease is terminated by the Landlord in accordance with applicable state and local Tenant/Landlord laws; (2) the Lease is terminated by the Tenant in accordance with the Lease or by mutual agreement during the term of the Lease; or (3) termination of the HOME Rental Assistance Program Contract by the [program administrator].

- D. Rental Assistance Payment.** Each month the [program administrator] will make a rental assistance payment to the Landlord on behalf of the Tenant. This payment shall be credited by the Landlord toward the monthly rent payable by the Tenant. The balance of the monthly rent shall be paid by the Tenant.

E. Security Deposit

- (1) The (Tenant/[program administrator]) has deposited \$ _____ with the Landlord as a Security Deposit. The Landlord will hold this security deposit during the period the Tenant occupies the dwelling unit under the Lease. The Landlord shall comply with state and local laws regarding interest payments on security deposits.

(2) After the Tenant has moved from the dwelling unit, the Landlord may, subject to state and local laws, use the security deposit, including any interest on the deposit, as reimbursement for rent or any other amounts payable by the tenant under the Lease. The Landlord will give the Tenant a written list of all items charged against the security deposit and the amount of each item. After deducting the amount used as reimbursement to the Landlord, the Landlord shall promptly refund the full amount of the balance to the (Tenant/[program administrator]).

F. Utilities and Appliances. The utilities and appliances listed in Column 1 are provided by the Landlord and included in the rent. The utilities and appliances listed in Column 2 below are not included in the rent and are paid separately by the Tenant.

UTILITY/APPLIANCE	Included in Rent	Tenant Paid
Garbage Collection		
Water/Sewer		
Heating Fuel (specify)		
Lights, electric		
Cooking Fuel (specify)		
Other (specify)		
Refrigerator		
Stove/Range		

G. Household Members. Household members authorized to live in this unit are listed below. The Tenant may not permit other persons to join the Household without notifying the [program administrator] and obtaining the Landlord's permission. Household members:

H. Housing Quality Standards. The Landlord shall maintain the dwelling unit, common areas, equipment, facilities and appliances in decent, safe, and sanitary condition (as determined by Section 8 Housing Quality Standards).

I. Termination of Tenancy. The Landlord may evict the Tenant following applicable state and local laws. The landlord must provide the Tenant with at least 30 days' written notice of the termination. The Landlord must notify the [program administrator] in writing when eviction proceedings are begun. This may be done by providing the [program administrator] with a copy of the required notice to the Tenant.

J. Prohibited Lease Provision. Any provision of the Lease which falls within the classifications below shall not apply and not be enforced by the Landlord.

- (1) *Confession of Judgment.* Consent by the Tenant to be sued, to admit guilt, or to a judgment in favor of the landlord in a lawsuit brought in connection with the Lease.
- (2) *Treatment of Property.* Agreement by the Tenant that the Landlord may take or hold the Tenant's property, or may sell such property without notice to the Tenant and a court decision on the rights of the parties.
- (3) *Excusing the Landlord from Responsibility.* Agreement by the Tenant not to hold the Landlord or Landlord's agent legally responsible for any action or failure to act, whether intentional or negligent.
- (4) *Waiver of Legal Notice.* Agreement by the Tenant that the Landlord may institute a lawsuit without notice to the Tenant.
- (5) *Waiver of Court Proceedings for Eviction.* Agreement by the Tenant that the Landlord may evict the Tenant Family (i) without instituting a civil court proceedings in which the Family has the opportunity to present a defense, or (ii) before a decision by the court on the rights of the parties.
- (6) *Waiver of Jury Trial.* Authorization to the Landlord to waive the Tenant's right to a trial by jury.
- (7) *Waiver of Right to Appeal Court Decision.* Authorization to the Landlord to waive the Tenant's right to appeal a court decision or waive the Tenant's right to sue to prevent a judgment from being put into effect.
- (8) *Tenant Chargeable with Cost of Legal Actions Regardless of Outcome of the Lawsuit.* Agreement by the Tenant to pay lawyer's fees or other legal costs whenever the Landlord decides to sue, whether or not the Tenant wins.

K. Nondiscrimination. The Landlord shall not discriminate against the Tenant in the provision of services, or in any other manner, on the grounds of age, race, color, creed, religion, sex, handicap, national origin, or familial status.

TENANT SIGNATURES	LANDLORD SIGNATURES
By: (Type or Print Name of Tenant Representative)	LANDLORD NAME:
(Signature/Date)	By: (Type or Print Name of Landlord Representative)
By: (Type or Print Name of Tenant Representative)	(Signature/Date)
(Signature/Date)	

Appendix H

PARTICIPANT CONTRACT

Service Provider's TBRA Program aims to provide homeless individuals with short-term rental subsidies, accompanied by intensive services, in order to rapidly transition homeless individuals into housing and prevent them from remaining homeless. At the same time, these services are designed to support individuals in achieving housing independence and realizing their full potential.

I/ We met with the Housing Stability Specialist and have elected to:

_____ Participate in the TBRA program
_____ Not Participate in the TBRA program

Now that I have been accepted into the program, I understand that in order to remain eligible for services, I agree to comply with the following Next Step Participant rules/guidelines:

- I understand that I am responsible for managing all additional living expenses (i.e. utilities, sewage, water, garbage, food, etc.....) above and beyond what is paid for by my subsidy.
- I agree to schedule and meet with my Housing Stability Specialist as determined necessary but no less than one time per month with all meetings being at my housing location unless otherwise agreed upon. I agree that if there is a conflict with the schedule, it is my responsibility to contact the Housing Stability Specialist to address/re-schedule the meeting.
- I agree that there will be a mutual respect between my Housing Stability Specialist and myself.
- I am aware that the Housing Stability Specialist may complete a housing inspection during the home visits.
- I agree to take initiative and cooperate in developing a Self Sufficiency Plan with my Housing Stability Specialist that identifies and seeks to resolve barriers to permanent housing including, but not limited to;
 - gaining or increasing employment/income to a living wage through job training/basic education
 - address debt issues
 - learn or improve money management skills
 - increase knowledge of housing options and opportunities in the community.
- I agree to complete and follow a budget and savings plan.
- I agree to provide documentation as needed by my Housing Stability Specialist to provide proof of employment/income, employment search/applying, attendance records at job trainings, G.E.D. classes, proof of debt payments, etc..... during scheduled meetings.
- I agree to notify my Housing Stabilization Case Manager of any lease violations or concerns.
- I agree not to sublet or have anyone not already approved by the lease agreement to stay at the rental property for an extended period of time.

My signature below indicates that I understand what is expected of me by the TBRA Program and that in order to continue to be eligible for participation in the program I must follow these rules/guidelines. In addition I will be an active participant in my Self Sufficiency Plan.

_____ Participant Name	_____ Participant Signature	_____ Date
_____ Participant Name	_____ Participant Signature	_____ Date
_____ Housing Stability Specialist Signature		_____ Date

[Type here]

Appendix I

Housing Choice Voucher Program

Effective Date: October 1, 2019

Bedrooms	0	1	2	3	4	5+	
GAS							
Cooking	3	4		5	7	8	10
Heating	14	17		18	20	23	25
Water Heater	8	9		13	18	23	28
ELECTRIC							
Basic	26	31	44	58	74		89
Cooking	5	6	11	16	19		23
Heating	17	20	22	25	28		35
Water Heater	16	20	28	34	40		46
OTHER							
Water	42	45	65	97	127		158
Trash & Sewer	26						
Refrigerator	9						
Stove	7						

Orange County Housing Authority

Appendix J

ADDENDUM TO OPERATING PROCEDURES FOR TENANT BASED RENTAL ASSISTANCE PROGRAMS

On April 10, 2020, the Housing and Urban Development Department, HUD, issued two memoranda, April 10, 2020 Memorandum – Availability of Waivers and Suspensions of the HOME Program Requirements in Response to COVID-19 Pandemic and April 10, 2020 Memorandum – Suspensions and Waivers to Facilitate Use of HOME-Assisted Tenant-Based Rental Assistance (TBRA) for Emergency and Short-term Assistance in Response to COVID-19 Pandemic. The memoranda prioritized the immediate housing needs of those impacted by COVID-19 and the prevention of the spread of COVID-19 and to achieve such ends, provided for numerous waivers and suspensions in current federal regulations and policies. The City's Community Development Department applied for and was granted the waivers and suspensions on April 22, 2020.

The following waivers and suspensions, among others, were granted and impact the administration of the HOME Tenant Rental Based Assistance Program (TBRA) which provides rental assistance to low income individuals and families in Huntington Beach.

April 10, 2020 Memorandum – Availability of Waivers and Suspensions of the HOME Program Requirements in Response to COVID-19 Pandemic

- HOME Program - 10% Administration and Planning Cap
- HOME Program – Income Documentation
- HOME Program – On-Site Inspections of HOME-assisted Rental Housing
- HOME Program - Annual Inspection of Units Occupied by Recipients of HOME Tenant-Based Rental Assistance (TBRA)

April 10, 2020 Memorandum – Suspensions and Waivers to Facilitate Use of HOME-Assisted Tenant-Based Rental Assistance (TBRA) for Emergency and Short-term Assistance in Response to COVID-19 Pandemic

- HOME Program – Consolidated Plan-HOME Certification, Analysis of Local Market Conditions, and Citizen Participation
- HOME Program – Tenant Selection and Targeted Assistance
- HOME Program - Eligible Tenant-based Rental Assistance Costs and Maximum TBRA Subsidy
- HOME Program - Term of Rental Assistance Contract
- HOME Program – Tenant Protections-Lease
- HOME Program – Housing Quality Standards
- HOME Program – Annual Inspection of Units Occupied by Recipients of HOME TBRA
- HOME Program - Income Determinations

HUD will be issuing further guidance on the waivers and suspensions. The City will adopt these guidelines within the program's operating procedures to ensure low income residents of Huntington Beach will be afforded maximum access to this

program. The City will be required to provide written documentation of the changes to operating procedures and work closely with the service providers to ensure compliance of the modified regulations during the pandemic and its aftermath.